

Plaintiff argues that Defendant Court's affirmative defenses are not defenses but, rather, merely restatements of the standards for a demurrer. Plaintiff asserts that each defense lacks supporting factual allegations and only challenges the sufficiency of Plaintiff's complaint.

In opposition, Defendant Court asserts that: (1) its answer factually alleges that Plaintiff seeks records that are not "judicial administrative records" subject to disclosure; (2) the records are exempt from disclosure; (3) Plaintiff did not follow the required procedure; (4) Plaintiff did not contact the correct individual; (5) the records sought were not reasonably identified by Plaintiff; (6) Defendant Court took reasonable efforts to assist Plaintiff to refine her records request; and (7) Defendant Court was unable to find responsive documents due to Plaintiff's failure to refine her search.

On reply, Plaintiff argues that, through its opposition, Defendant Court attempts to amend its answer by arguing factual allegations, legal analysis, and explanations that are not included in its answer. Plaintiff argues the opposition contains an "extensive discussion" regarding Rule 10.500 and distinctions between "judicial administrative and adjudicative records," which are not contained in Defendant Court's answer. However, contrary to Plaintiff's assertions, Defendant Court directly alleges Rule 10.500 in its answer (second and fourth affirmative defenses) and alleges its bases for contending that the records requested by Plaintiff are not "judicial Administrative records" subject to production (second affirmative defense). Therefore, Plaintiff's argument on this point is without merit.

Finally, Plaintiff's argument that the "affirmative defenses" are not sufficiently pleaded also appears without merit. In *State Farm Mutual Automobile Insurance Co.*, the court explained the difference between denials and affirmative defenses: "Under Code of Civil Procedure section 431.30, subdivision (b)(2), the answer to a complaint must include '[a] statement of any new matter constituting a defense.'" (*State Farm Mutual Automobile Insurance Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725.) "The phrase 'new matter' refers to something relied on by a defendant which is not put in issue by the plaintiff." (*State Farm Mutual, supra*, 228 Cal.App.3d at p. 725 [internal citation omitted].) "Thus, where matters are not responsive to essential allegations of the complaint, they must be raised in the answer as 'new matter.'" (*Ibid.*) Where, however, the answer sets forth facts showing some essential allegation of the complaint is not true, such facts are not 'new matter,' but only a traverse [(denial)]." (*Ibid.*)

Here, Defendant Court's defenses allege "new matters" that are not found on the face of Plaintiff's complaint. Plaintiff's complaint alleges that Defendant Court is required to provide her with certain records. In its "affirmative defenses," Defendant Court alleges reasons why Plaintiff is not entitled to the records she seeks or why it cannot comply. Defendant Court's affirmative defenses allege the legal grounds and ultimate facts in support of its denial, which are not found on the fact of Plaintiff's complaint and constitute "new matters."

18. *Marquez v. Look Cinemas II, LLC, et al*, Case No. CIVSB2428912

Defendant Look's Motion for Summary Judgment or, in the Alternative, Summary Adjudication
7/8/26, 9:00 a.m., Dept. S-17

Tentative Rulings

As to Opposition Timeliness: The Court is inclined to consider the untimely opposition. In this case, Defendant has submitted a reply on the merits. "It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion." (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7]; also *Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 343 [The principal of adequate time to response "is served if the party appears at the hearing, opposes the motion on the merits, and was not prejudiced in preparing an opposition by the untimely notice."].)

As to Evidentiary Objections: The Court would **OVERRULE** the objections to the Rivera declaration.

As to the Motion: The Court would **DENY**.

Case Summary

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must

determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Plaintiff alleges that she was at the at-issue theater on May 4, 2024. She asserts that the flooring in the ramp area leading to the auditorium was in dangerous and unsafe because the vinyl flooring material was uneven and excessively sticky, which caused her shoe to adhere to the floor unexpectedly. (UMF, 2.) She asserts further that the change in elevation without required handrails or warnings was also hazardous. (UMF, 3.) She asserts that the condition constituted a dangerous condition and violated Title 24 of the California Building Code and the ADA standards, specifically that the running slope of the subject walkway exceeded the maximum grade permitted. (UMF, 5) She contends that the condition was not transitory (like a spill) but a static condition existing for a substantial period. (UMF, 6.)

Defendant Look's PMQ testified that he was the General Manager at the location. (UMF, 13.) He also asserted that he had not received any complaint from employees or guests that the floor was sticky. (UMF, 20.) All employees are responsible for keeping the floor clean of trash or liquid throughout the day and the floor was cleaned that day as needed. (UMF, 21.) Defendant Look has a contract for cleaning four days per week, and the contractor has never given any notice of a "sticky" floor. (UMF, 22.) All employees are trained to identify potentially hazardous conditions, such as spills, dirty floors, and trash. (UMF, 23.)

In a slip-and-fall case, "[a]bsent any evidence that there was a foreign substance on the floor, or some other dangerous condition created by or known to [owner], the plaintiffs cannot sustain their burden of proof." (*Peralta v. The Vons Companies, Inc.* (2018) 24 Cal.App.5th 1030, 1037.) "[A] defendant is entitled to judgment as a matter of law if the plaintiff fails to show that the dangerous condition existed for at least a sufficient time to be discovered by ordinary care and inspection." (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1207.) Here, Defendant Look largely argues that there is no evidence of a dangerous condition or notice – actual or constructive – thereof.

In support, Defendant Look sets forth that Plaintiff testified that she did not recall seeing any substance on the floor, including any liquid or other material, and that she did not have any sticky material on her clothing after the fall. (MF, 10, 12.) She further testified that she had no difficulty seeing the area due to the lighting conditions. (MF, 11.) Plaintiff identified only the general location of her alleged fall from photographs. (MF, 7.) Significantly, Plaintiff's own witness (who accompanied her on the date in question) observed the incident, identified the specific location of the alleged fall and could not identify any hazardous condition there. (MF, 8-9.)

Further, Defendant Look's PMQ inspected the area immediately after the incident and found nothing unusual, no spill, no debris, no trash, no sticky condition, and no trip hazard. (MF, 15-

16.) He reviewed the security footage and, likewise, observed no spill, debris, or condition that could have caused Plaintiff's foot to catch or adhere to the floor. (MF, 18.) He personally walked the floor and did not find it sticky. (MF, 19; also Exh. I ["There was no liquid. There was no trash. There was no obstacle or anything that could have caused this."].) Objective testing further confirmed that faux wood laminate flooring is commonly used material in both commercial and residential applications, is commonly available, and the time of inspection, the flooring was firm, stable, and clean. (MF, 27.) In support, Defendant Look also submitted a declaration from a biomechanics and safety consultant that indicated that the ramp was in compliance with applicable law and the flooring was "firm, stable, and clean" and not in a dangerous condition. (Blanchette Decl., ¶¶4-9.)

In opposition, Plaintiff asserts that her own testimony is unequivocal: Her foot became stuck to a sticky coating on the floor; that stickiness caused her to lose her balance; and she fell and injured herself. (See, e.g., Exh. I, 19:3-7 [foot got stuck]; 22:11-20 [It was sticky].)¹ Further, an employee at the scene told her that the theater had applied a sticky sealer to the floor to prevent slips and falls. (Plaint. Sep. Statement [PSS] Additional Material Facts [AMF], 1-6, 17; also Exh. I, 22-23.) Further, Plaintiff submits the declaration of expert Rivera that indicates that he inspected the location and opines that the ramp was in an "unsafe condition" at the time of the incident because of the sticky floor surface. (Rivera Decl., ¶¶9-10.) He also opines that the lack of a handrail "exacerbated" the unsafe condition. (Rivera Decl., ¶11.)

Here, the Court must view the evidence in the light most favorable to the non-moving party. Defendant Look tries to argue that the case is controlled by *Peralta v. The Vons Companies*; however, Plaintiff here is *not* arguing that there was a spill or foreign substance on the floor. (See *Peralta v. The Vons Companies, Inc.* (2018) 24 Cal.App.5th 1030, 1035-1036 [hearsay rejected in establishing floor was slippery].) Rather, Plaintiff testifies repeatedly that the floor was inherently sticky and that an employee told her a sealer of some sort was used to eliminate falls.

Defendant's expert does not comment on the stickiness of the floor. He just stated: "Faux wood laminate flooring is commonly used material in both commercial and residential applications and is commonly available." (Blanchette Decl., ¶5.) "At the time of my inspection, the flooring was firm, stable, and clean." (*Ibid.*) This appears to be a dispute of fact between Plaintiff and Defendant's PMQ who did not find the floor sticky. The experts have not weighed in on the stickiness of the floor.

Additionally, there are conflicting opinions by the experts given as to compliance with the Building Code and the slope of the ramp. Plaintiff's expert states that walkway failed to comply

¹ While much is argued about the fact that Plaintiff saw no substance on the floor, it appears immaterial since a sticky sealer bonded to vinyl is not a visible condition that adequate lighting might reveal.

with the Building Code and Defendant's expert states it complies. This is another issue of fact as to whether the slope required a handrail.

TENTATIVE